[*299] * 3. **Intention to give right of enjoyment in specie may be collected from the bequest.** — But an intention that the property should be enjoyed *in specie* may appear from the form of the bequest, or be collected from the terms in which it is expressed. Thus if there be a *specific bequest* of leaseholds or of stock the specific legatee will take the rents or dividends (*a*). And a power of varying the securities expressly given to the executors will not prejudice the right of the specific legatee, for the testator is held to have given the executors the authority, not with the intention of varying the relative rights of the legatees, but merely with the view of adding security to the property (*b*).

4. **Use of word "rents."** — Again, if after a mention of leaseholds, there is a general direction to pay *rents* to the tenant for life, this is held sufficient to prevent the application of the general rule (*c*), though it is doubtful upon the authorities whether the use of the word *rents* in connection with a gift containing no mention of leaseholds would have the same effect (*d*). A mere mention of "dividends" is certainly not sufficient to authorize the nonconversion of ter-

to invest otherwise than in 3 per cent. Bank Annuities, see *post*, sect. 4 of this chapter.]

(*a*) Vincent *v.* Newcombe, Younge, 599; Lord *v.* Godfrey, 4 Mad. 455. But it is not necessary that the bequest should technically be specific in order to entitle the tenant for life to enjoy the income in specie; see Pickering *v.* Pickering, 4 M. & Cr. 299; Hubbard *v.* Young, 10 Beav. 205; Harris *v.* Poyner, 1 Drew. 181. The case of Mills *v.* Mills, 7 Sim. 501, is contrary to the other authorities, and is not law.

(*b*) Lord *v.* Godfrey, 4 Mad. 455; and see Morgan *v.* Morgan, 14 Beav. 72; *Re* Llewellyn's Trust, 29 Beav. 171. [If leaseholds which a tenant for life is entitled to enjoy *in specie*, be taken by a Company under the provisions of the Lands Clauses Consolidation Act, or sold under the Settled Estates Act, the purchase-money should be converted into an annuity having the same duration as the lease, which should be paid to the person who would for the time being have received the rents of the leaseholds. Askew *v.* Woodhead, 14 Ch. D. 27; *Re* Walsh's Trusts, 7 L. R. Ir. 554. As to the application of the purchase-money in the case of sales under the Settled Land Act, 1882, of leasehold or reversionary interests; see sect. 34 of the Act.]

(*c*) Blann *v.* Bell, 2 De G. M. & G. 775; Crowe *v.* Crisford, 17 Beav. 507; Hood *v.* Clapham, 19 Beav. 90; Marshall *v.* Bremner, 2 Sm. & G. 237; *Re* Elmore's Trusts, 6 Jur. N. S. 1325; and see Thursby *v.* Thursby, 19 L. R. Eq. 395.

(*d*) See Goodenough *v.* Tremamondo, 2 Beav. 512; Hunt *v.* Scott, 1 De G. & Sm. 219; Wearing *v.* Wearing, 23 Beav. 99; Pickup *v.* Atkinson, 4 Hare, 624; Craig *v.* Wheeler, 29 L. J. N. S. Ch. 374; Vachell *v.* Roberts, 32 Beav. 140.